

July 10, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 14329

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the one-time transportation, for source disposal purposes only, of CPN International, Inc. portable nuclear gauge Models MC-S-24, MC-1, MC-2, MC-3, MC-M, BR, BR(C), BR Mark II, MC-1DR, MC-1DR(P), 501S, 503S, 501DR, and 503DR. The gauges have installed QSA Global, Inc. (formerly AEA Technology QSA, Inc.) Models X.2084, X.8, and X.220 sealed source capsules, that are qualified as special form radioactive material under the provisions of this special permit. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in the development of this special permit only considered the hazards and risks associated with the transportation in commerce.
 - c. Unless otherwise stated herein, this special permit consists of the special permit authorization letter issued to the grantee together with this document.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.469 and 173.476(a) in that the sealed capsules listed in this special permit do not meet the requirements for special form radioactive material, except as specified herein.

5. BASIS: This special permit is based on the application of Qal-Tek Associates dated March 1, 2006 and the additional technical information dated May 22, 2006 submitted in accordance with § 107.105 and the public proceeding thereon.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Materials Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Radioactive material, Type A package, special form, <i>non fissile or fissile-excepted</i>	7	3332	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Type A packagings must be used as prescribed by the HMR. Each Type A packaging may only contain one CPN International, Inc. nuclear gauge.

b. OPERATIONAL CONTROLS -

1. The use of this special permit is limited to CPN International, Inc. nuclear gauge Models MC-S-24, MC-1, MC-2, MC-3, MC-M, BR, BR(C), BR Mark II, MC-1DR, MC-1DR(P), 501S, 503S, 501DR, and 503DR. The gauges have installed QSA Global, Inc. (formerly AEA Technology QSA, Inc.) Models X.2084, X.8, and X.220 sealed source capsules, that are qualified as special form radioactive material under the provisions of this special permit, as provided in the following table. The table provides the permitted capsule model numbers, upper activity limits, and applicable manufacturing dates.

Capsule Model No.	Am-241 Activity	Cs-137 Activity	Manufactured Before
X.8	N/A	0.37 GBq (10 mCi)	9/23/81
X.2084	1.85 GBq 50 (mCi)	N/A	7/28/83
X.220	1.85 GBq 50 (mCi)	0.37 GBq (10 mCi)	4/1/81

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2. Each CPN International, Inc. nuclear gauge must contain no more than one X.8 and one X.2084 capsule; or no more than one X.220 capsule.

3. The sealed source capsule(s) must have no known or suspected defects.

4. The sealed source capsule(s) must have passed a current satisfactory leak test in accordance with U.S. Nuclear Regulatory Commission or Agreement State license conditions.

5. This special permit only authorizes one-time transportation for source disposal purposes only.

8. SPECIAL PROVISIONS:

a. A current copy of this special permit must be maintained at each facility where the package is offered or reoffered for transportation.

b. Each package must be conspicuously marked "DOT-SP 14329" with letters and numerals at least 1" (2.5 cm) high.

c. Persons offering hazardous materials under this special permit must be on file (organization, address, telephone number, and email address optional) with PHMSA's Office of Hazardous Materials Special Permits and Approvals. The filings may be provided by either the consignor or consignee. Filings must be provided to the Office of Hazardous Materials Special Permits and Approvals, Pipeline and Hazardous Materials Safety Administration., U.S. Department of Transportation, 400 7th Street, SW, Washington, D.C. 20590-0001, Attention: PHH-31; or by email to specialpermits@dot.gov.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle and cargo aircraft only.

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10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle or cargo aircraft used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
 - o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)—"The Hazardous Materials Safety and Security Reauthorization Act of 2005" (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term "exemption" to "special permit" and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator

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for Hazardous Materials Safety -- OHMSPA, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Robert A. McGuire
Associate Administrator
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Material Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm. Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: JWILLIAMS